



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

November 22, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 16591
(THIRD REVISION)

EXPIRATION DATE: 2025-11-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of compressed argon in non-DOT specification cylinders. This special permit provides no relief from the Hazardous Materials Regulations (HMR), the International Civil Aviation Organization's Technical Instructions (ICAO TI) or the International Maritime Dangerous Goods Code (IMDG Code) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
 - d. This special permit serves as an "Approval" under Part 6, Chapter 5, Paragraph 5.1.1.2 of the ICAO TI and Part 6, Chapter 6.2 Section 6.2.1.1.2 of the IMDG Code and as a "Competent Authority Approval" as defined under 49 CFR § 107.1.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180, the ICAO TI and the IMDG Code.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 171.23(a) and § 173.302(a) in that non-DOT specification packaging is not authorized, except as provided herein.

Tracking Number: 2023114431

5. BASIS: This special permit is based on the application of Department of Defense dated November 19, 2021, submitted in accordance with § 107.109 and additional information submitted on November 8, 2023.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Argon, compressed	2.2	UN1006	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING:

(1) Prescribed packaging is a non-DOT specification cylinder (P/N 1109-185-01) that must conform to Conax Florida drawing number 1660-011 on file with the Office of Hazardous Materials Safety (OHMS). The non-DOT specification cylinder must be installed and be an integral part of battery cooling units NSN 1440-01-491-6917 (P/N: 13303844-001), NSN 1440-01-523-4154 (P/N 13303844-002), and NSN 1440-01-523-4154 (P/N 13303844-003) on file with OHMS.

(2) Prescribed packaging is a non-DOT specification cylinder (P/N 13303283-003) that must conform to Carleton drawing number 13303279 on file with OHMS. The non-DOT specification cylinder must be installed and be an integral part of battery cooling unit NSN 1420-01-424-3207 (P/N 13303250-059) on file with OHMS.

(3) Prescribed packaging for battery cooling units NSN 1440-01-491-6917 (P/N: 13303844-001), NSN 1440-01-523-4154 (P/N 13303844-002), and NSN 1440-01-523-4154 (P/N 13303844-003) must conform to the Department of the Army's Certificate of Equivalency (COE) AY-97-191 (Rev. 5), dated January 20, 2009 and Special Packaging Instructions on file with OHMS.

(4) Prescribed packaging for battery cooling unit NSN 1420-01-424-3207 (P/N 13303250-059) must conform to the Special Packaging Instruction AL14243207 (Revision B) on file with OHMS.

- b. REQUALIFICATION: There are no requalification requirements as the non-DOT specification cylinders are not refilled.
- c. OPERATIONAL CONTROLS:
 - (1) The non-DOT specification cylinders may not be charged to greater than 7,600 psig.
 - (2) The non-DOT specification cylinders may not be refilled.
 - (3) In lieu of the tests in Part 178, the non-DOT specification cylinders must be subjected to the tests in the Conax Florida document dated September 9, 1997.
- 8. SPECIAL PROVISIONS:
 - a. Under the terms of this special permit, the grantee may only offer hazardous materials (i.e., the grantee is not authorized as a carrier).
 - b. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit the HMR, the ICAO TI and the IMDG Code.
 - c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
 - d. This special permit in no way affects the need to obtain any required authorizations from other agencies of the United States Government or from the competent authorities of countries of origin, transit and destination.
- 9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, cargo vessel, and cargo-only aircraft.
- 10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel, aircraft, or motor vehicle used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.
- 11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Jephthah Nti